

BILLMAN v HARMON

23CV47101

CROSS-DEFENDANTS' DEMURRER TO FIRST AMENDED CROSS-COMPLAINT

Now before the Court is a demurrer filed by Cross-Defendants Jamie Billman, Myrna Ray Reynolds, LLC, and Billman's Cool Roofing Company, Inc. ("Cross-Defendants") to the First Amended Cross-Complaint ("FACC") filed by Defendant/Cross-Complainant Krystal Harmon ("Harmon").

On March 19, 2025, Harmon filed a Second Amended Cross-Complaint ("SACC") within five (5) days of the stipulation and order filed by the parties. Per the Court's ruling on March 21, 2025, the demurrer to the FACC is moot and OVERRULED on that basis.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

HSU v DEL MUNDO

24CV47462

DEFENDANTS' DEMURRER TO COMPLAINT

Plaintiff Mike Sheng Con Hsu ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendants Leonardo Del Mundo and Angela Del Mundo ("Defendants"). Now before the Court is Defendants' demurrer.

There is some dispute over the sufficiency of meet and confer efforts. The Court reminds the parties of the requirement of Code of Civil Procedure section 430.41, but notes that the failure to meet and confer may not be a reason to grant or deny a demurrer. (Code Civ. Proc.430.41(a)(4).)

I. FACTS

Allen Weeks and Barbara Weeks (hereinafter "the Weeks") were the homeowners of the property at 11058 Slate Drive, San Andreas, California (hereinafter "Subject Property"). In May 1993, John W. Matthews and Diane Matthews (hereinafter "Matthews") were the homeowners of the property at 11034 Slate Drive, San Andreas, California (hereinafter "Neighboring Property").(Complaint ¶ 8.) The Subject Property and the Neighboring Property are adjacent to one another and located at the end of Slate Drive. (Id. ¶ 9.) On or about May 28, 1993, the Weeks obtained an easement for non-exclusive use for a 20 feet in width roadway on the Neighboring Property to be used by the Weeks ("Easement") (Id. ¶ 10.) Plaintiff alleges that Easement has been used as a driveway from 1993 to present day. (Id. ¶ 11.)

On or about August 10, 2017, Plaintiff purchased the Subject Property from the Weeks and continued to use the recorded Easement. (Id. ¶ 12.) In 2021, Defendants purchased the Neighboring Property. (Id. ¶ 13.) In December 2022, Defendants built a wired fence on the recorded easement covering about 80% of the driveway thereby reducing Plaintiff's ability to use the recorded easement. (Id. ¶ 14.) Plaintiff has repeatedly requested that Defendants remove the fence but Defendants have refused to do so. (Id. ¶ 17, 18.)